

Opinion of the Court

the Ninth Circuit concluded that Robins' complaint alleges "'concrete, *de facto*'" injuries for essentially two reasons. 742 F. 3d, at 413. First, the court noted that Robins "alleges that Spokeo violated *his* statutory rights, not just the statutory rights of other people." *Ibid.* Second, the court wrote that "Robins's personal interests in the handling of his credit information are *individualized rather than collective*." *Ibid.* (emphasis added). Both of these observations concern particularization, not concreteness. We have made it clear time and time again that an injury in fact must be both concrete and particularized. See, e.g., *Susan B. Anthony List v. Driehaus*, 573 U.S. 149, 158 (2014); *Summers, supra*, at 493; *Sprint Communications Co. v. APCC Services, Inc.*, 554 U.S. 269, 274 (2008); *Massachusetts v. EPA*, 549 U.S. 497, 517 (2007).

A "concrete" injury must be "*de facto*"; that is, it must actually exist. See Black's Law Dictionary 506 (10th ed. 2014). When we have used the adjective "concrete," we have meant to convey the usual meaning of the term—"real," and not "abstract." 1 Webster's Third New International Dictionary 472 (1971); Random House Dictionary of the English Language 305 (1966). Concreteness, therefore, is quite different from particularization.

2

"Concrete" is not, however, necessarily synonymous with "tangible." Although tangible injuries are perhaps easier to recognize, we have confirmed in many of our previous cases that intangible injuries can nevertheless be concrete. See, e.g., *Pleasant Grove City v. Summum*, 555 U.S. 460 (2009) (free speech); *Church of Lukumi Babalu Aye, Inc. v. Hialeah*, 508 U.S. 520 (1993) (free exercise).

In determining whether an intangible harm constitutes injury in fact, both history and the judgment of Congress play important roles. Because the doctrine of standing derives from the case-or-controversy requirement, and because that

Opinion of the Court

requirement in turn is grounded in historical practice, it is instructive to consider whether an alleged intangible harm has a close relationship to a harm that has traditionally been regarded as providing a basis for a lawsuit in English or American courts. See *Vermont Agency of Natural Resources v. United States ex rel. Stevens*, 529 U. S. 765, 775–777 (2000). In addition, because Congress is well positioned to identify intangible harms that meet minimum Article III requirements, its judgment is also instructive and important. Thus, we said in *Lujan* that Congress may “elevat[e] to the status of legally cognizable injuries concrete, *de facto* injuries that were previously inadequate in law.” 504 U. S., at 578. Similarly, JUSTICE KENNEDY’s concurrence in that case explained that “Congress has the power to define injuries and articulate chains of causation that will give rise to a case or controversy where none existed before.” *Id.*, at 580 (opinion concurring in part and concurring in judgment).

Congress’ role in identifying and elevating intangible harms does not mean that a plaintiff automatically satisfies the injury-in-fact requirement whenever a statute grants a person a statutory right and purports to authorize that person to sue to vindicate that right. Article III standing requires a concrete injury even in the context of a statutory violation. For that reason, Robins could not, for example, allege a bare procedural violation, divorced from any concrete harm, and satisfy the injury-in-fact requirement of Article III. See *Summers, supra*, at 496 (“[D]eprivation of a procedural right without some concrete interest that is affected by the deprivation . . . is insufficient to create Article III standing”); see also *Lujan, supra*, at 572.

This does not mean, however, that the risk of real harm cannot satisfy the requirement of concreteness. See, *e. g.*, *Clapper v. Amnesty Int’l USA*, 568 U. S. 398. For example, the law has long permitted recovery by certain tort victims even if their harms may be difficult to prove or measure. See, *e. g.*, Restatement (First) of Torts §§569 (libel), 570